OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

78 letters, three replies: my questions to Shoalhaven's CEO on the Ombudsman's Casebook

Sent 4 October 2026 · To Shoalhaven City Council, Mayor White · Response requested by 25 October 2026

Eye on Shoalhaven Council
Steven Prothero, publisher

4 October 2026
Mr Andrew Constance
Chief Executive Officer, Shoalhaven City Council
By email

Open letter to the CEO: what the NSW Ombudsman's July 2026 Casebook says, and what will change at Shoalhaven City Council

Dear Mr Constance,

I write in the knowledge that correspondence from this publication has, in recent months, been declined on the basis of guidance relating to unreasonable conduct.

I note, for the record, that the application of that guidance to a public interest publication with more than 4,847 local readers is itself a matter currently before the NSW Ombudsman.

The questions in this letter are
not personal complaints.
They are questions of public administration, put openly on behalf of a readership that represents approximately 5.6 per cent of Shoalhaven's registered voters.
They are questions any member of the public could ask at an ordinary council meeting.
I put them here, in writing, on the public record — and will publish whatever response is received, including none.

To be clear about what this is.

This is an open letter to the Chief Executive Officer.
It is not a complaint. It is not a Code of Conduct matter.
It is not a GIPA application or an informal access request.
It asks no one to make a decision about me.
You may answer it or not, as you choose.

Either way, what you do will be reported as part of my journalism on Eye on Shoalhaven Council: a reply will be published in full, and silence will be recorded as silence.

What the Ombudsman is saying

On 31 July 2026 the NSW Ombudsman, Mr Paul Miller, provided to Parliament Casebook July 2026: Investigations and complaint-handling case studies, a special report under s 31 of the Ombudsman Act 1974. It covers complaints finalised from 1 January to 30 June 2026. It does not make any finding about Shoalhaven City Council. I do not suggest otherwise. It does set out, in the Ombudsman's own words, the standard against which a council's administration is measured, and five of its cases bear directly on questions I have been putting to you.

The test. The Ombudsman may examine conduct that is

contrary to law;
unreasonable,
unjust,
oppressive or
improperly discriminatory;
based on irrelevant considerations; based on a mistake of law or fact; or
conduct for which reasons should be given but are not (Ombudsman Act 1974 s 26(1); Casebook p. 1).

The Ombudsman expressly oversees local councils.

Central Coast Council (p. 41). The Ombudsman noted that Central Coast generated the highest number of local government complaints to the office, with several matters showing inaction and a lack of response, so that residents had to escalate repeatedly.

Through preliminary inquiries and formal comments, the Ombudsman suggested the council change

how it triages and responds to complaints, and
adopt a system that supports
recordkeeping,
monitoring,
escalation and
tracking of responses.

The general manager convened a cross-functional workshop and training followed.

The Ombudsman stressed the role of agency heads and senior leaders in fostering a culture in which complaints are welcomed and valued.

The Casebook also appends the Ombudsman's six principles for effective complaint management (pp. 44 to 46):

treat complainants with respect and without detriment;
make it easy to complain;

keep complainants informed,
give reasons and apologise when things go wrong;
give each complainant a contact person;
deal with complaints as soon as possible against published timeframes; and
tell people what the organisation does with complaint information,
including the number received and finalised,
the percentage finalised within its targets, and
the systemic issues identified.

What the record at Shoalhaven shows
I set out the following so that you can correct anything that is wrong.

Letters.

As at 2 October 2026 this publication has sent 78 open letters to Council, the Mayor, you and councillors since 21 December 2025,
putting 757 questions on the record.
Three (3) have drawn a reply, all from individual councillors.
You have been sent 23 letters and have answered none.
The Mayor has been sent 10 and has answered none.
Letters addressed to Council as a body number 13, with none answered.
The oldest has been outstanding 285 days.
These counts are made from the Sent mailbox and will be slightly low, because two letters sit outside the register.

Restrictions. Your letter of 28 October 2025 (ref 78113E) restricted my correspondence to email only, said telephone calls would be politely declined, and moved informal access requests to three-monthly case management responses.

The review outcome dated 27 September 2026 (D26/408659) provides that from 15 October 2026 Council will respond to

a maximum of two inquiries a month,
each confined to one topic and "without extraneous comment about your views or opinions", and will "file without response" any other requests. I note that it also accepts informal requests on a six-month trial.

What Council told the Ombudsman. On 11 August 2026 the Ombudsman closed its file on the basis, as I understand it, that Council would review the restrictions and would respond to me directly about the delays and non-responses, and that Council acknowledged the arrangement appeared to have led to significant delays, which it attributed to resources.

I have received the review letter. I have not received a direct response about the delays, and the review letter does not address them. I am at a loss how claiming the use of so

much resource when NOT ONE of the letters have been responded.

Formal processes. GIPA application 81190E was valid on 18 June 2026 and due on 13 July. Council's letter of 7 August described it as deemed refused under s 63 and attributed the delay to workload and staffing.

Public statements. On 11 May 2026 you named me and this publication in an interview on 2ST, in the context of a "psychosocial hazard" and information being "weaponised". I was not asked for a response beforehand, I asked for an apology and correction, this matter is with ACMA at present and I believe you have mistated the Senior Member of NCAT, I have written to NCAT on that matter, to me it appears to be in contempt of the actual finding.

What I ask: what will change?
Please tell me what changes you will make, and by when. The questions are grouped.

A. The 27 September review
1. Does the cap of two inquiries a month apply to open letters addressed to you, the Mayor and councillors, or only to inquiries sent to council@shoalhaven.nsw.gov.au? If it applies to open letters, on what authority?
2. The review letter requires inquiries to be "without extraneous comment about your views or opinions". What is the purpose of that condition, and how does a rule about what a resident may say differ from a rule about how many inquiries they may make? Will you remove it, in light of the Waverley case?
3. When a request is "filed without response", will Council at least tell the sender it has been filed and why, so that no inquiry simply disappears?
4. What is the review date for these arrangements, what criteria will determine whether they end, and what is the route of review if I disagree?
5. The review letter cites the Complaint Handling Policy at "s9.1". The published policy I have read places the unreasonable-conduct provision at s3.1.3(4). Which is the clause relied on, and is there a version of the policy I have not seen?
6. I understand a draft Unreasonable Customer Conduct policy was placed on public exhibition from 7 April 2026. What is its status, how many submissions were received, and when will it come to Council?
7. When will the direct response about delays and non-responses, undertaken to the Ombudsman, be sent?
B. The system
8. Does Council have a published timeframe for responding to letters and questions from the public about its administration, as distinct from formal complaints? If so, where? If not, will you adopt one?
9. The Complaint Handling Policy sets timeframes (urgent 24 hours, simple 10 working days, complex 28 days) but I could find no performance targets or results. Will Council set targets, and report quarterly to a Council meeting the number of complaints and

correspondence items received and finalised, the percentage finalised on time, the issues raised and the systemic fixes made?
10. Will the "Case Manager" referred to in Council's correspondence be named, with a direct contact, as the Ombudsman's principles require?
11. Has Council considered the Ombudsman's six principles formally, and will you report on how its practice compares with them?
12. What resources are being put to correspondence and GIPA processing, given that Council has attributed delay to workload and staffing?
C. Leadership and culture
13. At Central Coast the general manager convened a cross-functional workshop, set an expectation of timely response and arranged training. Will you do the same, and will you publish a statement that questions and complaints from residents are welcomed? I would be happy to participatre in that giving the view from a resident and journalism perspective.
14. The Ombudsman's first principle includes ensuring people can complain without fear of detrimental action. Do you accept that it should apply to public comment by the CEO about a named correspondent? Will you correct or clarify anything said about this publication on 2ST on 11 May 2026?
D. Conflicts and accuracy
15. Policy POL22/149 (development applications lodged by Council staff, councillors and Council) was adopted on 20 September 2022 and carries a review date of 1 December 2024. When will it be reviewed, will the review address the current requirements of the Environmental Planning and Assessment Regulation 2021, and will the public DA register record whether land is Council-owned, who the applicant is and the cost of development?
16. For DA2026/1558 at Berry, where Council owns the car park at 77 Princess Street, has Council published how its ownership interest was separated from the assessment of the application?
17. Will Council adopt a verification step so that factual statements in staff reports and public statements
are checked before they are made, and
publish a correction at the next meeting when one is found to be wrong?
I would point to the Policy field of CL26.157 and the inconsistencies in CL26.220 as examples.
I will report any response you choose to give, whenever it arrives, as part of my journalism on the Eye.

For transparency, I am copying this letter to 31 people and organisations across the Shoalhaven:

22 Accredited Community Forums and community associations,
our state and federal members of parliament,

a political party office,
the United Services Union,
the Council on the Ageing NSW, and four local journalists.
I do this so that everyone with an interest in how our Council works is looking at the same information at the same time. Each of them is free to follow up on these questions in whatever way they think is appropriate. I would welcome a response that I can share with all of them.

Yours sincerely,
Steven Prothero
Publisher, Eye on Shoalhaven Council

Note to councillors receiving a copy of this letter:
The questions above are put to the CEO on the public record.
If you believe they warrant answers, you are in a position to raise them directly in the chamber, through a Question on Notice, a Notice of Motion, or a question to the Mayor in open council.
That is one of the most effective ways to place these matters on the public record in a forum where a response cannot be declined.
A simple Notice of Motion would ask the CEO to report to the next ordinary meeting on correspondence and complaints received and finalised in the last twelve months and the time taken.
This publication will report whatever is raised and whatever is answered.
